

Amendment No. 1 to HB0764

White
Signature of Sponsor

AMEND Senate Bill No. 290*

House Bill No. 764

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 49-6-4204(a), is amended by designating the subsection as subdivision (a)(1) and adding the following to the end of the subdivision:

(2) A search conducted pursuant to this subsection (a) may only be conducted by a:

(A) School resource officer who is acting, for the purpose of the search, as a school official;

(B) School security officer; or

(C) School administrator who has completed training pursuant to § 49-6-4212.

SECTION 2. Tennessee Code Annotated, Section 49-6-4204, is amended by adding the following as a new subsection:

(e) This section does not:

(1) Authorize a search that violates the fourth amendment to the United States Constitution or the Constitution of Tennessee, Article I, § 7; or

(2) Restrict a law enforcement officer from conducting a lawful search on school property.

SECTION 3. Tennessee Code Annotated, Section 49-6-4205(a), is amended by designating the subsection as subdivision (a)(1) and adding the following to the end of the subdivision:

(2) A search conducted pursuant to this subsection (a) may only be conducted by a:

(A) School resource officer who is acting, for the purpose of the search, as a school official;

(B) School security officer; or

(C) School administrator who has completed training pursuant to § 49-6-4212.

(3) If a student is under eighteen (18) years of age, then the principal must notify the student's parent or legal guardian within a reasonable time of the search.

SECTION 4. Tennessee Code Annotated, Section 49-6-4205, is amended by adding the following as a new subsection:

(c) This section does not:

(1) Authorize a search that violates the fourth amendment to the United States Constitution or the Constitution of Tennessee, Article I, § 7; or

(2) Restrict a law enforcement officer from conducting a lawful search on school property.

SECTION 5. Tennessee Code Annotated, Section 49-6-4212, is amended by deleting subsection (a) and substituting:

(a)

(1) The department of education shall establish and maintain an orientation and training program for LEAs to inform school administrators of the rights of students relative to searches.

(2) An LEA and a local law enforcement agency may establish and maintain an orientation and training program designed to familiarize school administrators with this part and with local policies and procedures for implementing and enforcing this part.

(3) A school administrator must complete the orientation and training developed by the department pursuant to subdivision (a)(1) prior to conducting a search pursuant to § 49-6-4204(a)(2)(C) or § 49-6-4205(a)(2)(C).

SECTION 6. Section 5 of this act takes effect upon becoming a law, the public welfare requiring it. All other sections of this act take effect July 1, 2025, the public welfare requiring it.